

explicitly alleged. The only references to a conspiracy are conclusory and relate to alleged misrepresentations by others that purportedly caused cross-complainants to purchase their property. Without more, the cross-complaint does not adequately allege that the HOA participated in a conspiracy to conceal adverse claims on title.

Accordingly, the demurrer as to this cause of action is sustained, with leave to amend.

C. Seventh and Eighth Causes of Action (Equitable Indemnification and Equitable Contribution)

The HOA demurs to these causes of action on the basis that there is no underlying liability that would give rise to them. The HOA points to plaintiffs' principal complaint, which alleges only quiet title and declaratory relief causes of action.

Cross-complainants, without citing any authority, respond that plaintiffs also seek "costs of suit," and these are damages for purposes of these causes of action.

"It is well settled in California that equitable indemnity is only available among tortfeasors who are jointly and severally liable for the plaintiff's injury." (*Stop Loss Ins. Brokers, Inc. v. Brown & Toland Medical Group* (2006) 143 Cal.App.4th 1036, 1040, citations omitted.) With limited exception, there must be some basis for tort liability against the proposed indemnitor. (*Ibid.*) Equitable contribution also applies with respect to a "right to recover from a co-obligor" a portion of a "money judgment." (See *Crowley Maritime Corp. v. Boston Old Colony Ins. Co.* (2008) 158 Cal.App.4th 1061, 1067; Code Civ. Proc., § 875 (a) [where money judgment rendered jointly against two or more defendants in a tort action, there is right of contribution among them].)

Because the underlying complaint in this action is not one for money damages, the demurrer is sustained with respect to the seventh and eighth causes of action, with leave to amend.

8. 9:00 AM CASE NUMBER: C24-02677
CASE NAME: AMERICAN MLB FEDERAL INVESTMENTS VS. SHERI KELLEHER
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF CROSS-COMPLAINT OF SHERI KELLEHER AND PAUL JONATHAN**
FILED BY: SANDERS RANCH HOMEOWNERS ASSOCIATION
TENTATIVE RULING:

Denied as moot. Please see Line 7.

9. 9:00 AM CASE NUMBER: C25-01047
CASE NAME: IRIS FLORES HERNANDEZ VS. SIPRIANO ORELLANA FUENTES
***HEARING ON MOTION IN RE: COMPEL DEFENDANT'S RESPONSE TO PLAINTIFFS' DEMAND FOR INITIAL DISCLOSURES UNDER CAL. CODE OF CIV. PROC. 2016.090 AND FOR MONETARY SANCTIONS**
FILED BY: FLORES HERNANDEZ, IRIS
TENTATIVE RULING:

On October 15, 2025, Plaintiffs made a demand pursuant to Code of Civil Procedure 2016.090 for Initial Disclosures. They made this demand by email. They have not received a response to their